

Limitation of
right of alder-
men to vote in
certain cases.

1.—(1) An alderman of a municipal borough shall not, as such, vote in the election of an alderman of the borough, and an outgoing alderman shall not, as alderman, vote in the election of mayor.

45 & 46 Vict.
c. 50.

(2) In the Municipal Corporations Act, 1882, subsection (3) of section sixty, and the word “outgoing” in subsection (6) of the same section, and subsection (3) of section sixty-one, are hereby repealed.

Short title and
construction.

2. This Act may be cited as the Municipal Corporations Amendment Act, 1910, and shall be construed as one with the Municipal Corporations Act, 1882.

CHAPTER 20.

An Act to amend the Diseases of Animals Acts, 1894 to 1909, in respect of the exportation and shipment of horses.
[3rd August 1910.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Prohibition of
export of unfit
horses; ap-
pointment of
veterinary sur-
geons to
examine; ex-
pense to be
borne by
owners.

1.—(1) It shall not be lawful, except as in this Act provided and in such cases as may be prescribed by order of the Board of Agriculture and Fisheries, to ship or attempt to ship any horse in any vessel from any port in Great Britain to any port outside the British Islands, unless immediately before shipment the horse has been examined by a veterinary inspector appointed by the Board for the purpose of conducting examinations under this Act, and has been certified in writing by him to be capable of being conveyed to such port and disembarked without cruelty. There shall be paid to the Board or such person as they direct, in respect of such examination, and before it takes place, such fees as may be prescribed by order of the Board, and such certificate shall be delivered at the time of shipment to the master of the vessel on which the animal is shipped, who shall, on demand, produce the same to any constable or any inspector or other officer of the Board or the local authority and allow such person to take a copy of, or extract from, the certificate :

Provided that every order made under this section prescribing the cases to be excepted shall be laid before each House of Parliament as soon as may be after it is made, and, if an Address is presented to His Majesty by either House of Parliament within the next subsequent thirty days on which that House has sat next after any such order is laid before it praying that the order or any part thereof may be annulled, His Majesty in Council may annul the order or part thereof, and it shall

thenceforth be void, but without prejudice to the validity of anything previously done thereunder.

(2) If any horse examined under this Act shall be found by the veterinary inspector to be in such a physical condition that it is cruel to keep it alive, it shall be lawful for him, without the consent of the owner, to slaughter the animal, or cause it to be slaughtered, in such a manner as to inflict as little suffering as practicable.

(3) A veterinary inspector may, for the purposes of identification, mark a horse certified by him under this section in such manner as the Board may by order prescribe.

(4) If any person, with a view to evading the provisions of this Act, marks a horse with the prescribed mark, or with any mark so nearly resembling it as to be calculated to deceive, he shall be guilty of an offence against the Diseases of Animals Act, 1894. 57 & 58 Vict.
c. 57.

2. Notwithstanding anything in section forty-seven of the Diseases of Animals Act, 1894, there may be charged by the Board of Agriculture and Fisheries for any licence, permit, or examination required by any order under that Act relating to the exportation or shipment of horses such fee or other charge as may be prescribed by order of the Board. Fee for licence,
&c., to export
horses.

3. If any horse shipped from any port in Great Britain to any port outside the British Islands has a limb broken or is otherwise seriously injured while on board so as to be incapable of being disembarked without cruelty, the master of the vessel shall forthwith cause the animal to be slaughtered, and every vessel on which a horse is so shipped shall carry a proper killing instrument, to be approved by the Board of Agriculture and Fisheries, for that purpose, and it shall be the duty of the owner and master of every such vessel to see that the vessel is provided with such an instrument, and the master, if so required by an inspector of the Board or of the local authority, shall produce the instrument for his inspection. Master to cause
slaughter of
injured horses
with approved
killing instru-
ment.

4. An inspector of the Board of Agriculture and Fisheries, or of the local authority, may enter any vessel for the purpose of ascertaining whether the provisions of this Act, or of any order under the Diseases of Animals Act, 1894, relating to the exportation or shipment of horses are being complied with. Powers of
entry.

5. Every local authority described in the Diseases of Animals Act, 1894, shall, if and so far as the Board of Agriculture and Fisheries by order so direct, execute and enforce this Act within their district. Duty of local
authorities to
enforce Act.

6. If any person does anything or omits to do anything in contravention of any of the provisions of this Act, or if the master of a vessel permits a horse to be shipped therein in contravention of this Act, he shall be deemed guilty of an offence Offences.

against the Diseases of Animals Act, 1894, and the provisions of that Act relating to offences and legal proceedings shall apply accordingly as if the expression "animal" therein included horses.

Exemption of horses certified to be travelling for certain purposes.

7. The provisions of this Act shall not apply in the case of shipment of any thoroughbred horse certified in writing by a steward or the secretary of the Jockey Club—

- (a) to have arrived in Great Britain not more than one month before the date of shipment for the purpose of being run in a race ; or
- (b) to be shipped for the purpose of being run in a race ; or
- (c) to be shipped in order to be used for breeding purposes :

Provided that such certificate shall be delivered at the time of shipment to the master of the vessel on which the animal is shipped, who shall, on demand, produce the same to any constable or any inspector or other officer of the Board or the local authority, and allow such person to take a copy of, or extract from, the certificate.

Commence-
ment and inter-
pretation.

8.—(1) This Act shall come into operation on the first day of October nineteen hundred and ten.

57 & 58 Vict.
c. 60.

(2) In this Act the expressions "vessel," "owner," "master," and "port" have the same meanings as in the Merchant Shipping Act, 1894, and the expression "horse" includes ass and mule.

Title.

9. This Act may be cited as the Diseases of Animals Act, 1910, and the Diseases of Animals Acts, 1894 to 1909, and this Act may be cited together as the Diseases of Animals Acts, 1894 to 1910, and this Act shall for all purposes have effect as part of the Diseases of Animals Act, 1894.

CHAPTER 21.

An Act to grant Money for the purpose of certain Local Loans out of the Local Loans Fund, and for other purposes relating to Local Loans. [3rd August 1910.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Appointment
of Public
Works Loan
Commissioners
for five years.
38 & 39 Vict.
c. 89.

1. Whereas the term of office of persons who are, at the passing of this Act, Public Works Loan Commissioners under the Public Works Loans Act, 1875, will expire at the end of a period of five years from the first day of April nineteen hundred and six, and it is expedient to appoint Commissioners for a